

STATE OF NEW YORK

2224--B

Cal. No. 450

2025-2026 Regular Sessions

IN SENATE

January 16, 2025

Introduced by Sen. KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Ethics and Internal Governance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Ethics and Internal Governance in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the legislative law, in relation to relieving reporting requirements on small nonprofits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 3 of subdivision (a) of section 1-e of the legis-
2 lative law, as amended by chapter 1 of the laws of 2005, is amended to
3 read as follows:
4 (3) Commencing calendar year two thousand five and thereafter every
5 lobbyist shall biennially file with the commission, on forms provided by
6 the commission, a statement of registration for each biennial period
7 beginning with the first year of the biennial cycle commencing calendar
8 year two thousand five and thereafter; provided, however, that the bien-
9 nial filing of such statement of registration shall not be required of
10 any lobbyist who (i) in any year prior to calendar year two thousand six
11 does not expend, incur or receive an amount in excess of two thousand
12 dollars of reportable compensation and expenses, as provided in para-
13 graph five of subdivision (b) of section one-h of this article, for the
14 purposes of lobbying [~~and~~]; (ii) commencing with calendar year two thou-
15 sand six does not expend, incur or receive an amount in excess of five
16 thousand dollars of reportable compensation and expenses, as provided in
17 paragraph five of subdivision (b) of section one-h of this article for
18 the purposes of lobbying; (iii) commencing with calendar year two thou-
19 sand twenty-six, is qualified as an exempt organization or entity by the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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United States department of the treasury under section 501(c)(3) of the internal revenue code and does not expend, incur or receive an amount in excess of ten thousand dollars of reportable compensation and expenses, as provided in paragraph five of subdivision (b) of section one-h of this article, for purposes of lobbying or ~~[(ii)]~~ (iv) is an officer, director, trustee or employee of any public corporation, when acting in such official capacity; provided however, that nothing in this section shall be construed to relieve any public corporation of the obligation to file such statements and reports as required by this article.

§ 2. Paragraph 4 of subdivision (a) of section 1-e of the legislative law, as amended by chapter 1 of the laws of 2005, is amended to read as follows:

(4) Such biennial filings shall be completed on or before January first of the first year of a biennial cycle commencing in calendar year two thousand five and thereafter, by those persons who have been retained, employed or designated as lobbyist on or before December fifteenth of the previous calendar year and who reasonably anticipate that in the coming year they will expend, incur or receive combined reportable compensation and expenses in an amount in excess of two thousand dollars in years prior to calendar year two thousand six and five thousand dollars commencing in two thousand six or, where such lobbyist is qualified as an exempt organization or entity by the United States department of the treasury under section 501(c)(3) of the internal revenue code, ten thousand dollars commencing in two thousand twenty-six; for those lobbyists retained, employed or designated after the previous December fifteenth, and for those lobbyists who subsequent to their retainer, employment or designation reasonably anticipate combined reportable compensation and expenses in excess of such ~~[amount]~~ amounts, as applicable, such filing must be completed within fifteen days thereafter, but in no event later than ten days after the actual incurring or receiving of such reportable compensation and expenses.

§ 3. Paragraphs (iii) and (iv) of subdivision (e) of section 1-e of the legislative law, as amended by section 1 of part S of chapter 62 of the laws of 2003, are amended to read as follows:

(iii) The first statement of registration filed biennially by each lobbyist for the first biennial registration requirements for calendar years between two thousand five and two thousand ~~[six and thereafter]~~ twenty-five, shall be accompanied by a registration fee of two hundred dollars except that no registration fee shall be required from any lobbyist who in any year does not expend, incur or receive an amount in excess of five thousand dollars of reportable compensation and expenses, as provided in paragraph five of subdivision (b) of section one-h of this article, for the purposes of lobbying or of a public corporation. A fee of two hundred dollars shall be required for any subsequent statement of registration filed by a lobbyist during the same biennial period; (iv) The first statement of registration filed biennially by each lobbyist for the first biennial registration requirements for calendar year two thousand twenty-six and thereafter, shall be accompanied by a registration fee of two hundred dollars except that no registration fee shall be required from any lobbyist who: (A) in any year does not expend, incur or receive an amount in excess of five thousand dollars of reportable compensation and expenses, as provided in paragraph five of subdivision (b) of section one-h of this article, for the purposes of lobbying; or (B) is qualified as an exempt organization or entity by the United States department of the treasury under section 501(c)(3) of the internal revenue code and in any year does not expend, incur or receive

1 an amount in excess of ten thousand dollars of reportable compensation
2 and expenses, as provided in paragraph five of subdivision (b) of
3 section one-h of this article, for the purposes of lobbying; or (C) is a
4 public corporation. A fee of two hundred dollars shall be required for
5 any subsequent statement of registration filed by a lobbyist during the
6 same biennial period; (v) The statement of registration filed after the
7 due date of a biennial registration shall be accompanied by a registra-
8 tion fee that is prorated to one hundred dollars for any registration
9 filed after January first of the second calendar year covered by the
10 biennial reporting requirement. In addition to the fees authorized by
11 this section, the commission may impose a fee for late filing of a
12 registration statement required by this section not to exceed twenty-
13 five dollars for each day that the statement required to be filed is
14 late, except that if the lobbyist making a late filing has not previous-
15 ly been required by statute to file such a statement, the fee for late
16 filing shall not exceed ten dollars for each day that the statement
17 required to be filed is late.

18 § 4. Subdivision (a) of section 1-h of the legislative law, as amended
19 by chapter 14 of the laws of 2007, is amended to read as follows:

20 (a) Any lobbyist required to file a statement of registration pursuant
21 to section one-e of this article who in any lobbying year reasonably
22 anticipates that during the year such lobbyist will expend, incur or
23 receive combined reportable compensation and expenses in an amount in
24 excess of five thousand dollars, or ten thousand dollars where such
25 lobbyist is qualified as an exempt organization or entity by the United
26 States department of the treasury under section 501(c)(3) of the inter-
27 nal revenue code as provided in paragraph five of subdivision (b) of
28 this section, for the purpose of lobbying, shall file with the commis-
29 sion a bi-monthly written report, on forms supplied by the commission,
30 by the fifteenth day next succeeding the end of the reporting period in
31 which the lobbyist was first required to file a statement of registra-
32 tion. Such reporting periods shall be the period of January first to the
33 last day of February, March first to April thirtieth, May first to June
34 thirtieth, July first to August thirty-first, September first to October
35 thirty-first and November first to December thirty-first.

36 § 5. Subdivision (a) of section 1-j of the legislative law, as amended
37 by chapter 14 of the laws of 2007, is amended to read as follows:

38 (a) Semi-annual reports shall be filed by any client retaining,
39 employing or designating a lobbyist or lobbyists, whether or not any
40 such lobbyist was required to file a bi-monthly report, if such client
41 reasonably anticipates that during the year such client will expend or
42 incur an amount in excess of five thousand dollars, or ten thousand
43 dollars where such lobbyist is qualified as an exempt organization or
44 entity by the United States department of the treasury under section
45 501(c)(3) of the internal revenue code of combined reportable compen-
46 sation and expenses, as provided in paragraph five of subdivision ~~(e)~~
47 (b) of this section, for the purposes of lobbying.

48 § 6. This act shall take effect on the sixtieth day after it shall
49 have become a law.